

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2024CUBC034264: HALEY ROJAS vs FCA US, LLC, et al.

08/25/2026 in Department 44

Motion for Judgment on the Pleadings by Defendant FCA US LC as to Plaintiff Haley Rojas's Complaint

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant FCA US LLC’s Motion for Judgment on the Pleadings as to Plaintiff’s Sixth Cause of Action for Fraudulent Inducement-Concealment (*Opposed*)

Tentative Ruling:

Defendant FCA US LLC’s Motion for Judgment on the Pleadings as to Plaintiff Haley Rojas’s Sixth Cause of Action for Fraudulent Inducement-Concealment is DENIED.

Plaintiff adequately alleges, for purposes of the pleadings, a transactional relationship with FCA and the material factual components of fraudulent concealment required by *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1. The Complaint alleges that Plaintiff entered into a warranty contract with FCA concerning the Subject Vehicle, interacted with FCA sales representatives, and was induced to purchase the Vehicle without disclosure of an Engine Defect allegedly known to FCA before the sale. (Complaint, ¶¶ 7-8, 16-25, 65-72.)

The claim also is not barred by the economic loss rule at the pleading stage. *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 840-844, remains published and precedential following the Supreme Court’s dismissal of review and holds that the economic loss rule does

not bar an adequately pleaded claim for presale fraudulent inducement by concealment in this context.

The Court declines to consider FCA's statute-of-limitations argument first raised in reply. In any event, the argument lacks merit on the face of the Complaint because Plaintiff alleges she acquired the Vehicle on May 26, 2024 and filed this action on December 11, 2024, well within the three-year limitations period applicable to fraud claims under Code Civ. Proc. § 338(d).

Plaintiff to give notice.